

Cottenham, alluding to that case, observed, "It was there laid down as a rule which I have since acted upon, that though 'recommendation' may in some cases amount to a direction and create a trust, yet, that being a *flexible* term, if such a construction of it be inconsistent with any *positive* provision in the will, it is to be considered as a recommendation and nothing more. In that case the interest supposed to be given to the party recommended was inconsistent with the other powers which the trustees were to exercise, and those powers being given in unambiguous terms, it was held that as the two provisions could not stand together, the flexible term was to give way to the inflexible term" (e).

8. **Trustees of this kind not always so strictly bound as in a common trust.** — If a trust be created, it does not follow that it shall be equally restrictive, as in the case of a clear ordinary trust. Thus, an estate was devised to A. and her heirs, "in the fullest confidence" that after her decease she would devise the property to the family of the testator; and Lord Eldon asked, if there were any case in which the doctrine had been carried so far, that the tenant in fee was not at liberty, with respect to *timber and mines*, to treat the estate in the same husbandlike manner as another tenant in fee? and his Lordship said he should hesitate a long time before he held that the person bound by the trust was not entitled to cut timber in the ordinary management of the property (f). And so it was afterwards decided by the House of Lords on appeal (g).

9. **Case of trustee taking no beneficial interest.** — On the other hand, the settlement may be so specially worded that the person bound by the trust takes for life only, with remainder to the children (h), or is not even tenant [*137] for life and takes no *beneficial interest at all. Thus, where a testator devised to his wife in fee, "under the firm conviction that she would dispose of and manage the same for the benefit of her children," the widow claimed

(e) *Knott v. Cottee*, 2 Phill. 192.

(f) *Wright v. Atkyns*, T. & R. 157, 163.

(g) See *Lawless v. Shaw*, Ld. & G. t. Sugden, 164.

(h) *Wace v. Mallard*, 21 L. J. N. S. Ch. 355.